

SCOPE OF SERVICES PROVIDED

1. NIMROD will provide annual fire equipment maintenance services to the client in accordance with the terms and conditions in this contract which will include:

SERVICES PROVIDED

- 1.1
- Inspection of fire equipment and / or fire alarm system at the client's premises.
 - If required, refurbishment of fire equipment and /or fire alarm to our minimum standards (i.e. repaint, replace instruction labels, supply spares and wall brackets, install equipment and devices etc.)
 - If required, refilling and pressurizing fire extinguishers and replacing any worn-out parts and spares. (if required)
 - For addressable fire alarm systems, the client must provide us with the panel manual, software and any connecting cable / accessories for reprogramming the system if required.
 - The client is responsible for informing all occupants of the premises when testing of the fire alarm system is to be carried out.

~~e. Refurbishment of fire equipment to our minimum standards (repaint, install equipment, replace labels, supply wall brackets, etc.)~~

~~f. Compliance with relevant safety standards and regulations (Are there specific standards adhere to?)~~

~~2.2 NIMROD will maintain a detailed service record for each visit, documenting the services performed, refurbishments, replacement parts, and other relevant information. A copy of this will be provided at the end of the service, however any additional copies will be chargeable at Kshs 500/- + VAT.~~

1. TERM OF CONTRACT

2. This contract commences on the date of signing and automatically renews for successive one-year terms, unless terminated by either party with thirty (30) days' notice in writing.

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3. TERMINATION

- 3.1 Either party may terminate this contract with thirty (30) days written notice,
- 3.2 In the event of a termination, the service charge is non-refundable and any outstanding dues must be cleared.
- 3.3 NIMROD may curtail further services in the event of non-payment within our trading terms which are 30 days from the date of the invoice. Interest will accrue at 3% per month on all overdue amounts.

2. FEES AND PAYMENT

4. The client agrees to pay NIMROD:
- Annual service charge upfront for maintenance services based on the service schedule
 - Additional charges as and when accrued for refurbishment, replacement, refurbishment and installation of fire equipment, replacement parts, spares, refills, special services, emergency call-outs, late fees, and any storage fees, and/or disposal costs.
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4.2 All fees and charges are subject to statutory taxes, VAT.

5. INFORMATION DISCREPANCIES

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5.1 NIMROD reserves the right to adjust the services and charges if it discovers discrepancies in the information provided by the client that affect the scope or nature of the services.

~~5.4~~5.2In this case, the client accepts and agrees to pay for the additional charges immediately.

6. LIABILITY

6.1 NIMROD is not liable for any loss, damage, injury, or death arising out of the use or malfunction of the fire equipment / fire alarm, or any damage to the client's premises, property, or equipment.

~~6.4~~6.2Any misuse, tampering, or interference with fire equipment or alarms, except for use in real-life situations, absolves NIMROD from any liability.

7. CLIENT ACKNOWLEDGEMENT AND COMMENTS

7.1 After each service visit, the client must sign (and Company rubber stamp) NIMROD's service sheet, confirming that the scheduled service has been undertaken.

7.2 If the client, for any reason, does not sign / rubber stamp the service sheet, NIMROD reserves the right to consider its obligations met as per the terms of this contract.

7.3 If the client is dissatisfied with the service, the client must still sign and rubber stamp the service sheet, and express any concerns or feedback directly on the service sheet and via email within 7 days of the service.

~~7.4~~7.4By signing the service sheet, the client does not waive their right to notify NIMROD of any dissatisfaction within the timeframe specified and does not exempt the client from fulfilling their payment obligations.

8. USE OF FIRE EQUIPMENT / SPECIAL SERVICE

9.1 If fire equipment is used, the client should inform NIMROD immediately and request a special service.

~~9.4~~9.2Special service due to a missed service or used equipment will be charged at normal contract rates.

3-9. FIRE TRAINING AND AUDIT SERVICES

17.1 Fire training and audit services can be arranged separately at the prevailing rates.

17.2 The client is solely responsible for providing a safe area for "live" fire demonstrations.

17.3 NIMROD staff reserve the right to decline practical demonstrations if they deem them unsafe.

10. IN-HOUSE SERVICE FOR EQUIPMENT

11.1 Equipment that has been received in our workshop for service will be subject to labour charges, minimum diagnosis charge and collection / delivery charges depending on the collection / return location

11.2 Clients who do not approve our service/repair estimate or fail to collect ready equipment within 2 weeks of our notice are liable to storage charges of 100/- plus VAT per unit, per day,

~~11.4~~11.3A minimum charge of 4000/- plus VAT applies for pumps that require inspection/repair at our workshop.

11. EQUIPMENT ACCEPTANCE AND RESPONSIBILITY

12.1 Upon delivery, the client must promptly inspect the fire equipment and sign our delivery note with company rubber stamp, confirming acceptance of the delivery

4-12. UPCOUNTRY / LODGES / REMOTE SERVICES

~~12.1~~ Bi-annual up-country maintenance services are scheduled during the months of April/May and October/November, as part of the regular maintenance contract.

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~~12.2~~ Special trips can be requested in any other month however these will be subject to additional charges.

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~~12.3~~ Up-country emergency service calls will incur extra transport costs, accommodation, park fees, and out-of-Nairobi expenses at NIMROD's discretion.

13.3

~~13.1~~ 13.4 Lodges/remote areas must provide meals and accommodation for our technician(s) during the entire stay ~~for of~~ the service as a goodwill gesture and with no charges levied to NIMROD. ~~[Is this chargeable by them? I would specify that this should be included as part of the service]~~

13.2 13.5

13. CANCELLATION POLICY AND ADMINISTRATION FEES

14.1 If a service cannot be carried out through no fault of this company such as not acknowledging e-mail notifications, appointment confirmations, refusal of admission by your staff, closure of premises or non-availability of your personnel to escort our team during their service etc. It will be deemed that NIMROD has met the service obligation.

14.2 An administration fee of 1000/- + VAT will apply for any reschedules or special arrangements.

15 Emergency calls are charged at 3000/- per visit, plus 2000/- per hour of part thereof within Nairobi and surrounding areas.

16 Extra charges may be applicable for equipment not readily accessible and where we may require any scaffolding or any other special equipment to access the units such as Detectors placed extremely high in warehouses / buildings.

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17.1

14. OTHERS

15.1 NIMROD reserves the right to review maintenance charges and adjust prices annually.

15.2 Proposed adjustments shall be communicated in writing.

16 Nimrod reserves the right to re-negotiate any terms and service charges under circumstances entailing extra work not accounted for on this contract.

16.1

~~16.1~~ Both parties agree to keep confidential any proprietary or sensitive information.

~~5.~~ USE OF FIRE EQUIPMENT

~~4.1~~ If fire equipment is used, the client should inform NIMROD immediately and request a special service

~~4.2~~ Special service due to a missed service or used equipment will be charged at normal contract rates.

~~TERM OF CONTRACT~~

~~This contract commences on the date of signing and automatically renews for successive one-year terms, unless terminated by either party with thirty (30) days' notice in writing.~~

~~FEES AND PAYMENT~~

~~The client agrees to pay NIMROD:~~

~~Annual Service charge for maintenance services~~

~~Additional charges for refurbishment, replacement, installation, replacement parts, spares, refills, special services, emergency call outs, late fees, storage fees, and disposal costs.~~

~~All fees and charges are subject to VAT.~~

~~PRICE ADJUSTMENTS~~

~~NIMROD reserves the right to review maintenance charges and adjust prices annually. Proposed adjustments shall be communicated in writing at least 15/30 days prior to the effective date.~~

~~CANCELLATION POLICY AND ADMINISTRATION FEES~~

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~~If a client cancels a scheduled service with less than 1 day's notice, they are responsible for 100% of the fee.~~

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~~Service appointments made on the day of service are ineligible for cancellations or refunds.~~

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~~If the client denies access to the premises or service cannot be carried out due to circumstances beyond NIMROD's control, it will be deemed that NIMROD has met the service obligation under this contract.
An administration fee of 2000/- + VAT will apply for any reschedules or special arrangements.~~

INFORMATION DISCREPANCIES

~~NIMROD reserves the right to adjust the services and charges if it discovers discrepancies in the information provided by the client that affect the scope or nature of the services. [Should we add a clause to state that in this event the client accepts to pay additional charges due to the updates made on site by NIMROD service staff]~~

~~The client agrees to promptly provide accurate and updated information~~

6. ~~TERMINATION~~

~~10.1 Either party may terminate this contract with thirty (30) days written notice if the other party fails to perform its obligations under this contract.~~

~~10.2 In the event of a termination, the service charge is non-refundable and any outstanding dues must be cleared.~~

~~10.3 NIMROD may curtail further services in the event of non-payment within 30 days from the date of the invoice, with interest charged at 3% per month on overdue amounts~~

7. ~~LIABILITY~~

~~11.1 NIMROD is not liable for any loss, damage, injury, or death arising out of the use or malfunction of the fire equipment, or any damage to the client's premises, property, or equipment, except to the extent caused by the gross negligence or willful misconduct of NIMROD or its employees.~~

~~11.2 The customer indemnifies NIMROD for claims, damages, or liabilities arising out of equipment use or premises and equipment damage~~

8. ~~CONFIDENTIALITY~~

~~12.1 Both parties agree to keep confidential any proprietary or sensitive information~~

9. ~~GOVERNING LAW~~

~~13.1 This agreement shall be governed by and construed in accordance with the laws of [Kenya]~~

10. ~~CLIENT SATISFACTION~~

~~14.1 NIMROD commits to providing high-quality fire equipment maintenance services. The client can notify NIMROD of dissatisfaction within [a specified number of days] in writing.~~

~~14.2 Upon receipt of the client's dissatisfaction notice, NIMROD will promptly investigate the matter and collaborate with the client to address and resolve the issues raised.~~

~~14.3 In the event that NIMROD fails to address and resolve the client's concerns to mutual satisfaction within a reasonable timeframe, the client may be entitled to a [partial/full] refund or a complimentary follow-up service, at NIMROD's discretion.~~

~~14.4 This satisfaction clause does not exempt the client from fulfilling their payment obligations.~~

11. ~~CLIENT ACKNOWLEDGEMENT AND COMMENTS~~

~~14.1 After each service visit, the client must sign (and Company rubber stamp) NIMROD's service sheet, confirming that the scheduled service has been undertaken~~

~~14.1 If the client, for any reason, does not sign / rubber stamp the service sheet, NIMROD reserves the right to consider its obligations met as per the terms of this contract. [What is the point of 15.1 if we add 15.2?]~~
~~14.2 If the client is dissatisfied with the service, the client must still sign and rubber stamp the service sheet, and express any concerns, comments, or feedback directly on the service sheet. [or to NIMROD via email?]~~
~~By signing the service sheet, the client does not waive their right to notify NIMROD of any dissatisfaction within the timeframe specified in the Client Satisfaction clause (Section 14).~~ **CLIENT SATISFACTION**
~~15.1 NIMROD commits to providing high quality fire equipment maintenance services. The client can notify NIMROD of dissatisfaction within [a specified number of days] in writing.~~
~~15.2 Upon receipt of the client's dissatisfaction notice, NIMROD will promptly investigate the matter and collaborate with the client to address and resolve the issues raised.~~
~~15.3 In the event that NIMROD fails to address and resolve the client's concerns to mutual satisfaction within a reasonable timeframe, the client may be entitled to a [partial/full] refund or a complimentary follow-up service, at NIMROD's discretion.~~
~~This satisfaction clause does not exempt the client from fulfilling their payment obligations.~~
~~15.1~~

12. EQUIPMENT ACCEPTANCE AND RESPONSIBILITY

~~16.1 Upon delivery, the client must promptly inspect the fire equipment [any complaints or dissatisfaction to be expressed prior to NIMROD staff leaving the client's premises]~~
~~16.2 Once the client has accepted the delivered fire equipment, NIMROD shall be relieved of any further responsibility for the condition or performance of the equipment.~~
~~16.3 The client is responsible for reporting any visible damage or defects in the delivered equipment during the initial inspection. NIMROD shall not be held liable for any damage, malfunction, or issues arising from the use or storage of the equipment after it has been delivered and accepted by the client.~~

13. FIRE TRAINING AND AUDIT SERVICES

~~17.4 Fire training and audit services can be arranged separately at the prevailing prices.~~
~~17.5 The client is solely responsible for providing a safe area for "live" fire demonstrations. NIMROD is not responsible for any property damage and injury to personnel.~~
~~17.6 Prior to conducting fire training and audit services, clients are advised to ensure appropriate insurance is in place for potential liabilities~~
~~17.7 NIMROD staff reserve the right to decline practical demonstrations if they deem them unsafe.~~

14. MISUSE AND TAMPERING

~~18.1 Any misuse, tampering, or interference with fire equipment or alarms, except for use in real-life situations, absolves NIMROD from any liability.~~
~~18.2 The customer [or client?] agrees to ensure that all individuals on their premises are educated and informed about the proper use of fire equipment.~~

15. IN-HOUSE SERVICE FOR EQUIPMENT

~~19.1 Equipment that has been received for in-house service will be subject to the following charges:~~

- ~~• Labour charge~~
- ~~• Minimum diagnosis charge~~
- ~~• Collection/delivery charge depending on the return location~~

~~19.2 Clients who do not approve our service/repair estimate or fail to collect ready equipment within 2 weeks of our notice are liable to storage charges [of 100/- plus VAT per unit, per day.]~~
~~19.3 A minimum charge of 4000/- plus VAT applies for pumps that require inspection/repair at our workshop.~~

Comments / questions

- ~~What about any insurance that you might have in place in case of delivery issues or damages while transporting~~
- ~~What about parking at client premises~~

~~What about disposing off any thing at the client premises—used labels, parts etc~~